



2025:DHC:60-DB



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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

Date of decision: 08.01.2025

+ **W.P.(C) 16927/2024**

VED VIR SINGH

.....Petitioner

Through: Ms.Pallavi Awasthi, Adv.

versus

UNION OF INDIA & ORS.

.....Respondents

Through: Mr.Ripu Daman Bhardwaj,
CGSC with Ms.Kautilya Birat,
GP.
SI Shrabanta Sarkar, SSB.

CORAM:

HON'BLE MR. JUSTICE NAVIN CHAWLA

HON'BLE MS. JUSTICE SHALINDER KAUR

NAVIN CHAWLA, J. (ORAL)

1. This petition has been filed by the petitioner challenging the Review Medical Board examination dated 30.09.2024 by which the petitioner was declared ineligible for appointment to the post of Constable (GD) in the Central Armed Police Forces (CAPFs) on the following grounds:



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FORM NO. 4 FOR CONSTABLE (GD) EXAM-2024

Review Medical Examination Report

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(Candidate's Copy)

Roll No.: 3001205931

Name of Candidate: VEDVIR SINGH

Gender: MALE

Father's/Husband's Name: AMICHAND

Identification Marks:

- Black mole on the left wrist joint.
- Black mole on the side neck.

Candidate's Signature (in the presence of the Medical Board): Signed

- Reason for Medical Unfitness: Tattoo over right arm
- Brief of Review Medical Examination & Finding thereof:

Tattoo over right arm size 14 cm x 12 cm over Rt deltoid region, present undergoing laser treatment to removal, wound incompletely healed and pigmentation present over 20% of the affected area.
- Final Opinion:
 - FIT
 - UNFIT** on account of incompletely removal tattoo over Rt deltoid region

Place:

Date: 30.09.2024

Medical Board Members:

-Sd- & -Stamp-

President: Dr. Vijay Srivastava

Member 1: Dr. Vivek Srivastava

Member 2: Dr. S.K. Gupta

Specialist (Dentist): Dr. N.K. Verma

Others: Stamped and signed members from SSB Lucknow.

Received result of Review Medical Examination

Signature of the Candidate: Signed

Roll No.: 3001205931

Name: YOGENDRA SINGH

Note: "The decision of the Review Medical Board will be final. No appeal will be entertained against the findings of the Review Medical Board in the Review Medical Examination."

Let me know if you'd like assistance with anything else!

C.T.C
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2. The learned counsel for the petitioner, placing reliance on the Judgment of this Court in ***Akshay Choudhary v. Union of India, Ministry of Home Affairs & Ors.***, 2024:DHC:4080:DB, submits that in a case of similar objection/rejection of the candidature therein, this Court had opined as under:

Signature Not Verified

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By: SUNIL
Signing Date: 14.01.2025
18:57:14

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“12. Strictly, there exists no tattoo post the tattoo removal surgery, and also, prima facie, the Tattoo Clause, does not stipulate that if a scar pursuant to removal of tattoo is unhealthy / unhealed, the same would lead to disqualification of a candidate, but we find that there was a cogent purpose for the Medical Board / Review Medical Board to examine the scar pursuant to the surgery to ensure that the visible part of the hand while saluting is clear in all respect. To that extent, the conclusion of the Review Medical Board, may be justified. But the fact remains that the Review Medical Board should not have examined the petitioner immediately after few days of surgery and should have given sufficient time to the petitioner to ensure healing of the scar and then decide the fitness / unfitness of the petitioner, as from the photograph of the petitioner's right forearm at ANNEXURE P-6, as well as the opinion sought by the petitioner from a skin specialist at ANNEXURE P-7 on April 20, 2024, who opined that no residue of tattoo can be seen and 2-3 sittings, would be needed for complete clearance of post-laser hyper-pigmentation, prima facie, it appears that the scar might have healed. As such, this Court in exercise of its extraordinary jurisdiction under Article 226 is of the view that the appropriate shall be that the respondents conduct re-examination of the petitioner's right forearm through a new Medical Board and come to a conclusion, whether the scar on the right forearm pursuant to removal of tattoo continues to be unhealed and unhealthy or has completely healed leaving no residue of tattoo. If the view of the Medical Board is in favour of the petitioner then the respondents shall, subject to availability of the vacancies in the grade of Assistant Commandant (Group A) take further action in respect of appointment of the petitioner as Assistant Commandant. Otherwise, the matter shall be treated as final



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against the petitioner. The aforesaid process of re-examination shall be completed within a period of six weeks from today as an outer limit and further action, if any, shall be taken as expeditiously as possible.”

3. She submits that as on the date of the Review Medical Board (hereinafter referred to as ‘RMB’), the petitioner had already got his Tattoo removed and it was only the wound, which has not completely healed. She submits that there is no disqualification prescribed for a wound not having been healed on the date of the medical examination.
4. Issue notice.
5. Notice is accepted by Mr.Ripu Daman Bhardwaj, learned counsel on behalf of the respondents.
6. He submits that admittedly, the petitioner had a Tattoo on his right arm, which he sought to get removed before the Review Medical Examination, however, at the time of the RMB, the wound from the removal surgery had not completely healed and even the Tattoo had not been completely removed.
7. On the other hand, the learned counsel for the petitioner reiterates that the petitioner was undertaking the laser treatment for removal of the Tattoo and it was only the wound that had not completely healed and there were pigmentation marks present on the hand.
8. We have considered the submissions made by the learned counsels for the parties.
9. In **Akshay Choudhary** (supra), in similar circumstances, this Court had directed re-medical examination of the petitioner therein.



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We deem it appropriate to follow the same path in the present case as well.

10. Accordingly, we direct that the petitioner should be re-examined by a Medical Board to be constituted by the respondents, who shall consider whether the Tattoo on the right forearm of the petitioner is completely removed and if so, whether the scar has healed and is not unhealthy. The Medical Board may also examine the petitioner afresh on all standards. In case the petitioner is found fit for appointment to the post of Constable (GD), further process of his appointment shall be undertaken and the petitioner shall be allowed to participate in the same. In case, the petitioner cannot be accommodated in the batch which was under consideration, his appointment shall be considered in the next following batch.

11. The above exercise of re-examination must be completed by the respondents within three weeks from today.

12. The petition is disposed of in the above terms.

NAVIN CHAWLA, J

SHALINDER KAUR, J

JANUARY 8, 2025
RN/VS

Click here to check corrigendum, if any